Montgomery County District Court

Cause No. 2024-CV-0041

Kristen Rich, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Kristen Rich

Date:	March 16, 2025
Location:	Offices of Sullivan & Palmer LLP
Examining attorney:	Stephanie Williams, Ashford & Lyle LLP
Defending attorney:	David Young, Sullivan & Palmer LLP

Q: Please state your full name for the record.

A: I'd rather not give my full name on the record for this part. You can use "the plaintiff."

Q: That's fine for now. Where were you living at the time of the collision?

A: In Houston, Texas, in an apartment near the Galleria area.

Q: Let's talk about the accident itself. Where were you when it happened?

A: I was stopped at a red light on a major road in Houston, in the right lane, waiting to turn.

Q: What happened while you were stopped?

A: I felt a hard impact from behind. My head snapped back and then forward, and my knee hit the lower part of the dashboard. The airbag didn't deploy, but the car shook badly.

Q: Did you get out of the vehicle?

A: Yes, after a minute or two. My knee was throbbing and I had trouble putting weight on it. The other driver came over and apologized. He said he looked down at his phone.

Q: Did you call for medical help at the scene?

A: No, I didn't think it was serious at first. I thought it was a bruise. I drove home, and by that evening the knee had swollen up a lot.

Q: When did you first seek medical treatment?

A: The next morning I went to an urgent care clinic. They took X-rays and told me to see an orthopedic specialist.

Q: What treatment have you rceeived since then?

A: I had an MRI, then physical therpay three times a week for several months. I also got a brace that I wore for walking. I still do exercises at home most days.

Q: How has the injury affected your daily life?

A: I used to run a few times a week and play recreational soccer on weekends. I haven't been able to do either since the accident. Stairs are hard, and I can't stand for long periods at my job, so I've had to sit more and use a stool. I also needed help with grocery shopping for a while.

Q: Have you missed any work because of the knee?

A: Yes, I missed several days early on, and I've had to laeve early for some appointments since then.

Q: Do you still have pain today?

A: Yes, it's less than before, but it flares up when it's cold or after I've been on my feet too long. Some days it's hard to sleep because of it.